

liability is difficult to predict, splitting equally between NorCal and the Peterson Defendants is reasonable. As for the express indemnity discussion (see Boardman Decl., ¶4), it is irrelevant to the determination to be made here. Should AMECO show a contract for express indemnity at trial, AMECO would be entitled to express indemnification. The scope of what sort of claims are extinguished by way of granting this motion is limited to the types of claims listed in Code of Civil Procedure, section 877.6, subd. (c). "It is well-established a good faith settlement would not preclude an indemnity action based on an express indemnity agreement. " (*Willdan v. Sialic Contractors Corp.* (2007) 158 Cal.App.4th 47, 55, citing *Bay Development, Ltd. v. Superior Court* (1990) 50 Cal.3d 1012, 1019, 1032.)

The Court disagrees with AMECO's assertion that the settlement is the result of collusion. AMECO's basis for the assertion includes that it was not included in the mediation, but the evidence suggests it declined to attend. AMECO also indicates it was put at a disadvantage in discovery, but as explained in the replies, AMECO's chosen discovery strategy relied on the efforts of others and this choice is not a reason to deny the motions. The discovery strategies were part of the cost calculations necessary in navigating litigation on the brink of trial.

For the above reasons, the Court finds this settlement was entered into in good faith and any claims covered by Code of Civil Procedure section 877.6, subdivision (c) (including equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault) are dismissed.

14. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION
***HEARING ON MOTION IN RE: GOOD FAITH SETTLEMENT BTWN DEFS PETERSON AND SITECH**
NORCAL AND PLTF SHARMA
FILED BY: PETERSON TRACTOR CO.
TENTATIVE RULING:

Please see Line 13.

15. 9:00 AM CASE NUMBER: MSC21-00588
CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION
HEARING IN RE: JOINDER WITH MOTIONS FOR GOOD FAITH SETTLEMENT FILED BY NORCAL
RENTAL GROUP, PETERSON TRACTOR, PETERSON HOLDING, AND SITECH NORCAL
FILED BY: SHARMA, SHALINI
TENTATIVE RULING:

Please see Line 13.

16. 9:00 AM CASE NUMBER: MSC21-02415
CASE NAME: MEJIA, ET AL. VS HERNANDEZ, ET AL.